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JUDGMENT SHEET

IN THE LAHORE HIGH COURT, RAWALPINDI BENCH,

RAWALPINDI.

JUDICIAL DEPARTMENT

Crl. Appeal No.32 of 2024

Haris Ali vs Muhammad Shabbir and another

JUDGMENT

Date of hearing	29.05.2025.
Accused/appellant by:	Ms. Talat Nisar, Advocate.
State by:	Mr. Naeem Akbar, Deputy Prosecutor General and Mr. Naveed Ahmad, Deputy District Public Prosecutor.
Complainant by:	In person.

SARDAR AKBAR ALI. J:- Haris Ali, “accused/appellant” being juvenile faced trial before learned Additional Sessions Judge/Judge Special Court Anti-Rape (GBV)/Judge Juvenile Court, Attock in case FIR No.10, dated 14.01.2023 under sections 367-A, 376(iii) and 377-B PPC registered at Police Station Rangoo, District Attock and on conclusion of trial *vide* judgment dated 13.12.2023 he was convicted and sentenced as under

Under Section 367-A P.P.C. to undergo 10 years’ R.I. with fine of Rs.50,000/- and in default whereof to further undergo four months Simple Imprisonment;

Under Section 376-(iii) P.P.C. to undergo life imprisonment with fine of Rs.50,000/- and in default whereof to further undergo four months’ Simple Imprisonment:

Under Section 17 of the Anti-Rape (Investigation and Trial) Act, 2021, he was directed to pay portion of 50% i.e. Rs.50,000/- of the fine amount imposed upon him to the victim Bisma Noor as compensation.

Benefit of Section 382-B Cr.P.C. was also extended to the convict/appellant and all the sentences were ordered to run concurrently. Appellant was held entitled to all the concessions under the Juvenile Justice System Act, 2018 applicable for undergoing the punishment of imprisonment until the attains the age of 18 years.

2. Succinctly stated the facts of the prosecution case as disclosed by Shabbir Ahmed, complainant (PW-11) in the F.I.R (Exh.PM) through

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his written application (Exh.PL/1) are that his daughter Bisma Noor, (PW-13) aged about 6/7 years was student of Class-1 in Government Girls Primary School, Daman and on 14.01.2023 at about 03:00 p.m., Shabbir Ahmed, complainant (PW-11) along with his wife Saadia Bibi (given up PW) was present in his house when his daughter Bisma Noor entered the house while weeping and when complainant's wife Saadia Bibi checked the Pajama of Bisma Noor, she noticed blood on her Pajama as well as on her leg. On asking, Bisma Noor told that when she was on the way to home, Haris Ali, appellant took her to an orange orchard by placing hand on her mouth and after removing her Pajama committed rape with her.

3. After registration of case and on conclusion of investigation report under section 173 Cr.P.C. was submitted, the accused/appellant when charge sheeted, denied the charge, pleaded innocence and claimed to be tried, whereupon, the prosecution examined 13 witnesses and after completion of prosecution evidence, the accused/appellant when examined under section 342 Cr.P.C, neither opted to appear in the witness box as required by section 340(2) Cr.P.C. nor produced documentary evidence in his defence and the trial ended in the terms, as detailed above.

4. We have heard learned counsel for the appellant as well as learned Law Officers for the State and vetted the record with utmost muse and care.

5. The entire edifice of the prosecution case rests upon the testimonials of Shabbir Ahmad, complainant (PW-11), Bisma Noor, victim (PW-13), Dr. Syeda Anum Zahra (PW-9), Dr. Saliha Ghias, Gynecologist (PW-10), Muhammad Aamir Khalid, Inspector/Investigating Officer (PW-6), DNA Serology Analysis Report (Exh.PR/1-3) and last but not least statement of Bisma Noor, victim (Exh.PQ) recorded under section 164 Cr.P.C. by the Judicial

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Magistrate Section-30, Attock whereas the remaining witnesses were formal in nature.

6. In the present case, Bisma Noor, victim who appeared as (PW-13) is star witness of the prosecution. In her deposition, she reiterated her stance as narrated in the crime report and alleged that the appellant had committed rape with her. By now, it is well settled that the testimony of a victim in cases of sexual offences is vital and unless there are compelling reasons which necessitate looking for corroboration of a statement, the Courts should find no difficulty to solely rely on the testimony of the victim of a sexual assault to convict the accused. However, the strict condition for this is that the same shall reflect that it is independent, unbiased and straightforward to establish the accusation against the accused and if the Court finds it difficult to accept victim's version, it may seek corroboration from some evidence which lends assurance to her version.

7. So far as the testimony of Shabbir Ahmad, complainant (PW-11) is concerned, according to the contents of F.I.R (Ex.PM) he had not seen the appellant while committing rape with his daughter/victim Bisma Noor and in his examination-in-chief, he endorsed the story narrated in the F.I.R (Ex.PM) that at about 03:00 p.m. when he and his wife were sitting in their house, Bisma Noor, victim (PW-13) on her return from school told them the story of rape committed by the appellant but in his cross-examination, he stated otherwise, the relevant extract is reproduced hereunder:

“Bisma on her return, firstly told the incident to her mother. I was not present when she told the incident to her mother.”

8. The other witness of the ocular account as mentioned in the F.I.R (Ex.PM) was Mst. Saadia, wife of the complainant and mother of the victim but she was given up by the prosecution, therefore, we have found that the testimony of Shabbir Ahmad, complainant (PW-11) is

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not direct and has no evidentiary value thus is thrown out of consideration.

9. Of course, the allegation levelled against the accused/ appellant is of very serious nature and the offence allegedly committed by him is of very heinous nature where modesty of a minor girl aged about 6/7 years has been destroyed/ spoiled. However, in view of the gravity of the alleged offence, it is to be examined with utmost care and cautious as to whether unimpeachable evidence is available with the prosecution to declare the appellant guilty of the alleged offence. In our view, the most important evidence in such like cases is that of Woman Medical Officer who examines the victim girl/lady and her medical report. In the instant case, the evidence of Syeda Anum Zahra, Woman Medical Officer (PW-9) who allegedly examined the victim girl Bisma Noor on the day of alleged incident, in her examination-in-chief, *inter alia*, deposed as under:-

Opinion

According to PFSA Report Serial No.2023-577777-DNA-086040. Keeping in view findings of the examination and PFSA report mentioned as above. It has been concluded that attempt of sexual assault has been committed but as no bruises, laceration and injuries were found. On perineal region labia majora were healthy, hymen was intact, sexual penetration has not been attempted. However, circumstantial evidences are very important in this regard. Partial DNA profile obtained from Epithelial-Fraction of item No.4.2 (stain section taken from the trouser) is a mixture of at least two individual, Haris Ali and Bisma Noor, cannot be excluded as being contributor to this DNA mixture profile.”

10. Bisma Noor, victim was also medically examined by Dr. Saliha Ghias, Gynecologist (PW-10) on 20.01.2023 after six days of the alleged occurrence who in her examination-in-chief observed as under:-

“History given by mother and child of anal intercourse. Child was stable well oriented in time and place. No bruises, scar marks and laceration seen, no blood spot seen at perineal area at the time of examination and hymen was intact.”

11. From the perusal of evidence of both the Woman Medical Officers, it seems that severe dents have been put in the case of prosecution. They have categorically deposed that after examining the

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victim girl they were of the opinion that the victim was not subjected to sexual penetration.

12. So far as two sealed samples of clothes of the victim and swabs of the victim, which as per statement of Kinza Ali, 546/LC (PW-3) were handed over to her by the Dr. Syeda Anum Zehra, Woman Medical Officer (PW-09), which she (PW-3) handed over to Muhammad Aamir Khalid, Inspector/ Investigating Officer of the case on the same day who took the same into possession through Recovery Memo (Exh.PD) but Dr. Syeda Anum Zehra, Woman Medical Officer while appearing as (PW-09), in her statement nowhere stated that she ever handed over any clothes or swabs to Kinza Ali 546/LC (PW-03). Thus, it appears from the above said deposition of Dr. Syeda Anum Zehra, Woman Medical Officer (PW-09) that she did not hand over any sealed parcel to Kinza Ali 546/LC (PW-03). However, Muhammad Aamir Khalid, Inspector/ Investigating Officer of the case (PW-06) in his examination-in-chief deposed that on 14.01.2023 after medical examination of the victim, Kinza Ali, Lady constable handed over to him two sealed parcels said to contain swabs and clothes of the victim which he took into possession *vide* recovery memo (Exh-PD) and handed over the same to the Moharrar Malkhana on the same day i.e. 14.01.2023. He in his examination-in-chief further stated that:

“On 16.01.2023, I collected two sealed parcels of swabs and clothes of the victim from Moharrar Malkhana and recorded his statement u/s 161 Cr.P.C. I also took the victim along with her father/complainant and accused to the PFSA, Lahore for DNA test on official vehicle along with Ghous Shah Constable, Ejaz Constable and driver Kamran Constable. I submitted the parcels in the office of PFSA, Lahore intact. The accused and victim were undergone to the test of DNA.”

13. The above facts lead us to hold that if the aforesaid sealed parcels were taken into possession by Muhammad Aamir Khalid, Inspector/ Investigating Officer of the case (PW-06) on 14.01.2023 through recovery memo (Exh.PD) whereas the appellant was arrested on the same day, then he was under obligation to transmit the said samples to

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the Office of PFSA intact without any lapse of time on the same day i.e. 14.01.2023 rather he after collecting the sealed parcels from Muharrar of the Malkhana on 16.01.2023, after two days of the occurrence proceeded to the Office PFSA, Lahore along with victim, her father as well as the accused/ appellant for DNA analysis. After going through the aforesaid statements of the PWs, it is established on record that the sealed parcels containing swabs and clothes of the victim were sent to the office of the PFSA after arrest of the appellant, which fact creates dent in the prosecution case

14. Analysis of DNA Report (Exh.PR/1-3) that the samples were received in the office of PFSA on 16.01.2023 with a delay of two days with no explanation, which makes the positive report of the PFSA, cloudy and losing its credence. Besides, above, the safe custody of the samples from the date of drawing and securing the same till onward transmission and receipt by the office of PFSA has also not been established by the prosecution, which adversely effects the case of the prosecution. Reliance in this regard can be placed to the case of “Tanvir vs. The State” (PLD 2020 Lahore 774).

Guidance is also sought from an elaborated judgment of the Hon’ble Supreme Court of Pakistan reported as “Atta-ul-Mustafa vs. The State and another” (2023 SCMR 1698), in which it has been held:

“Even otherwise, the DNA report cannot be treated as primary evidence and can only be relied upon for the purposes of corroboration and as stated above the evidence of the victim is not of such character, which can solely be relied upon to sustain conviction of the petitioner.”

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15. The rest of the evidence upon which the prosecution has relied upon is the statement of Bisma Noor, victim recorded under section 164 Cr.P.C. The record transpires that the occurrence allegedly took place on 14.01.2023 at 03:00 p.m. whereas the report was lodged by the complainant on the same day at 08:00 p.m., while the statement of the victim under section 164, Cr.P.C. was recorded before the Court of the Judicial Magistrate on 17.01.2023 i.e. after three days of the occurrence. She in her examination-in-chief stated that:

"بر حلف

بیان کیا کہ ملزم (حاضرہ عدالت کی جانب اشارہ کر کے کہا) نے میری شلوار اتاری تھی پھر ملزم میرے اوپر بیٹھ گیا تھا مجھے مالٹے دیئے تھے پھر ملزم مجھے اپنی حویلی میں لے گیا میرے اوپر بیٹھ کر زور لگایا میرے منہ پر ہاتھ رکھا پھر ملزم مجھے چھوڑ کر اپنے گھر چلا گیا میں منہ چھڑاتی رہی لیکن نہ چھڑاسکی سوال: ملزم نے کچھ کیا (جواب میں نفی میں سر ہلایا) اور کچھ نہ بتانا ہے۔ میرے ہاتھ پر زخم کا نشان بھی ملزم کی وجہ سے آیا تھا"

The alleged abductee also went ahead by deposing in her cross-examination that:

جرح منجانب ملزم حارث بذریعہ کونسل و بذریعہ عدالت (کونسل ملزم معترض ہیں کہ بیاں ہذا 364 ض-ف کے طریقہ کار کے مطابق نہ لکھا گیا ہے) میں پولیس کے پاس گئی تھی پولیس والے نے بتایا تھا کہ اس طرح بیان دینا ہے۔ سنکر درست تسلیم کیا۔

The perusal of her above statement shows that she in her cross-examination, admitted it correct that she deposed as per instructions of police. Thus, her statement recorded under section 164 Cr.P.C. cannot be relied upon being trustworthy and worth reliance.

16. It is re-iterated that sole statement of victim can be made basis for conviction or acquittal of the accused. However, perusal of material available on record in shape of ocular account, medical evidence, DNA report, statement of the victim under section 164 Cr.P.C as well as other material shows that sole statement of the victim cannot be relied upon and made basis for conviction of the accused/ appellant when the aforesaid pieces of evidence of the prosecution do not support her version, while the rest of the evidence which is supportive in nature only.

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17. After meticulous recital and critical analysis of the record, we have irresistibly arrived at the conclusion that the case of the prosecution is highly doubtful and the prosecution has failed to prove the indictment. Moreover, the evidence brought against the appellant has been found to be contradictory, untrustworthy and non-confidence inspiring, therefore, the reasons and conclusions drawn by the learned trial Court being found on improper evidence cannot be allowed to hold field and as such merits to be set at naught.

18. It is trite that in order to extend benefit of doubt to an accused person, it is not necessary that there should be several circumstances creating doubt, rather one reasonable doubt is sufficient to acquit an accused. Reliance is placed on the cases reported as “Masood Alam and another vs. The State and others” (2024 SCMR 156) and “Abdul Qadeer vs. The State” (2024 SCMR 1146) and “Muhammad Imtiaz Baig and another Versus The State through Prosecutor General, Punjab, Lahore and another” (2024 SCMR 1191).

19. As a corollary, Criminal Appeal No.32 of 2024 is allowed and the accused/appellant is acquitted of the charge, he shall be released forthwith if not required in any other case. The case property, if any, shall be disposed of in accordance with law and the record of the trial Court be sent back immediately.

(JAWAD HASSAN)
Judge

(SARDAR AKBAR ALI)
Judge